IN THE HIGH COURT OF ORISSA AT CUTTACK

CRLMC No. 1947 of 2021

Jayanta Kumar Dash @ Litu .... **Petitioner**

Mr.Devashis Panda, Advocate &
Mr. S. Panda, Advocate

-Versus-

State of Orissa and Another .... **Opposite Parties**

Mr. S.S.Mohapatra, ASC
Mr. J.P. Behera, Advocate for O.P. No.2

CORAM:
JUSTICE R.K. PATTANAIK

DATE OF JUDGMENT:03.07.2023

1. Instant petition under Section 482 Cr.P.C. is at the behest of the petitioner challenging the criminal proceeding in connection with CT(S) No.94 of 2018 and its continuance before the court of learned Sessions Judge, Dhenkanal on the grounds inter alia that the FIR and other materials on record do not make out a prima facie case against him and particularly with respect to an offence punishable under Section 376(2)(n) IPC for which he has been charged with besides Section 328 and 506 IPC and Sections 66-E and 67-A IT Act 2000 which is, therefore, to be quashed in exercise of the Court's inherent jurisdiction.

2. The FIR was lodged by the informant on 4th March 2018 alleging therein the mischief committed by the petitioner as against the victim daughter. In fact, the events and circumstances leading to the lodging of the FIR (Annexure-1) have been described therein by the informant mother. Later to the FIR lodged and on completion of investigation, a chargesheet under the alleged offences was submitted against the petitioner,

consequent upon which, charge was framed and trial started. Later to the commencement of trial, referring to the evidence of the victim and other materials with subsequent developments, the entire proceeding pending before the learned Sessions court has been challenged by the petitioner demanding that it is needed to be quashed in the interest of the justice.

3. Heard Mr. Panda, learned counsel for the petitioner, Mr. Mohapatra, learned counsel for the State besides Mr. Behera, learned counsel for the party No.2.

4. After the FIR was lodged by the informant, Gondia PS Case No. 36 dated 4th March 2018 was registered under Sections 292(A), 354(C) and 506 IPC and Sections 66-E and 67-A IT Act but finally, the chargesheet was submitted for an offence under Section 376(2)(n) IPC as well. Thereafter, the learned court below framed the charge for all the offences including Section 376(2)(n) IPC. The prosecution of the petitioner particularly for an offence of rape punishable under Section 376(2) (n) IPC is challenged on the ground that it is not prima facie made out as against the background facts especially considering the consensual relationship between the parties and that the victim declined to be medically examined and her marriage with the petitioner in the meantime. Whether with the allegations on record and framing of a charge under section 3762(j)(n) IPC and later to the commencement of the trial, inherent jurisdiction under section 482 Cr.P.C should at all with exercised to quash the proceeding on any such grounds raised.

5. Mr. Panda, learned counsel for the petitioner cited the following decisions, such as, **Ramawatar Vrs. State of MP** (Criminal Appeal No.1392 of 2011) decided on 25th October 2021; **Ramgopal and Another Vrs. State of U.P.** dated 29th

September, 2021 (Criminal Appeal No.1489 of 2012) besides **Ananda D.V. Vrs. State and Another** (Criminal Appeal No.394-395 of 2021) disposed of by order dated 12th April, 2021 to contend that extra-ordinary jurisdiction of this Court is required to be exercised in the best interest of the parties notwithstanding the commencement of trial for the reason that after settlement of the dispute, the petitioner and opposite party No.2 have married and happily leading their conjugal life at present. It is further submitted that there is no bar or any kind of restriction in the exercise of inherent jurisdiction under Section 482 Cr.P.C. at any stage of the criminal proceeding and even during the pendency of appeal, if it is really needed to do complete justice to the parties involved. Referring to the decision in **Ramawatar** (supra), it is contended that powers under Section 482 Cr.P.C. and Article 142 of the Constitution of the India are exercisable even at the stage of posed-conviction. The decision in **Ramgopal** (supra) is placed reliance on by Mr. Panda to submit that the criminal proceeding before the learned court below wherein trial has commenced should be brought to an end and terminated considering the special circumstances and in particular, the marriage having taken place between the parties in order to ensure stability in their marital life irrespective of the nature of one of the offences alleged is punishable under Section 376(2)(j)(n) IPC. Similarly, referring to the order in **Ananda D.V.** (supra), the quashing of the criminal proceeding against the petitioner is insisted upon, as in the said case, the parties had resolved their dispute after registration of the FIR and eventually got married. An additional citation in **Sudhira @ Biswa Pratap Dalei and Another Vrs. State of Odisha and Another** decided in CRLMC No.1077 of 2021 and disposed of on 24th August, 2021 is submitted, wherein, the case was registered under Section 376(2)(n) IPC with other allied offences including Sections 6 and 7 of the POCSO Act and therein,

the victim apparently left her parental house and joined the company of the accused and subsequently on attaining her majority married the latter. So, therefore, leaving aside other grounds, the contention is that continuance of the prosecution in C.T.(S) No.94 of 2018 should be quashed against the petitioner in view of the subsequent development of his marriage with opposite party No.2 and for the fact that both are staying together and leading a happy and peaceful conjugal life.

6. Mr. Mohapatra, learned ASC for State on the contrary submitted that the allegations against the petitioner are serious in nature which includes rape alleged by opposite party No.2 and in the meantime, the trial has commenced and even the victim was examined and therefore, under the aforesaid circumstances, the criminal proceeding pending before the learned Sessions court should not be quashed more so when the major offences are non-compoundable in nature. In other words, it is contended that considering the gravity of the offences alleged, it is not a fit case where inherent jurisdiction should be exercised and if allowed to happen, it would have an adverse influence on the society at large and while advancing such an argument, Mr. Mohapatra cited the decision of the Apex Court in the case of **Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur and Other Vrs. State of Gujarat AIR 2017 SC 4843**, wherein, it has been held that power under Section 482 Cr.P.C. and while dealing with the plea that the dispute has been settled, the Court must have due regard to the nature and gravity of the offence. It is further observed therein that heinous and serious offences involving mental depravity or offences, such as, murder, rape and dacoity cannot appropriately be quashed though the victim or her family has settled the dispute since such offences are not private in nature but have a serious impact upon the society and for that matter,

the decision to continue with the trial in cases of such nature is founded on the overriding element of public interest in punishing persons of serious offences. Hence, it is submitted that as the petitioner is facing trial for an offence of rape, even if the parties have married in the meantime by itself cannot be a ground to quash the prosecution in view of the legal position enunciated **Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur** (supra).

7. The submission of Mr. Behera, learned counsel for opposite party No.2 is recorded.

8. Admittedly, the petitioner is now facing trial for the charged offences which includes Section 376(2)(j)(n) IPC. A copy of the charge heads dated 5th August, 2019 is at Annexure-2. The FIR (Annexure-1) was lodged by the mother of opposite party No.2. As per the FIR, the petitioner appears to be a distant relation of the informant. In the said FIR, it has been alleged that the petitioner was responsible in breaking the marriage proposal and engagement of the informant's daughter which was to he held on 8th March, 2018. In fact, Annexure-1 made to suggest that the petitioner was against the alleged proposal and marriage of opposite party No.2 as he was in a relationship with the latter. As per the informant, which is revealed from Annexure-1, the petitioner committed further mischief in sharing some personal objectionable photographs of opposite party No.2 with the would be bridegroom. With the above allegation, Gondia P.S. Case No.36 was registered. As such, there was no case under Section 376(2) IPC initially registered which was added later on. As stated, the trial has already commenced. A copy of the deposition of opposite party No.2 examined on 15th October, 2019 as P.W.2 is at Annexure-3. In support of the claim of marriage between the parties, an affidavit sworn by opposite party No.2 dated 18th October, 2021 is placed on record along

with a copy of Marriage Certificate dated 28th September, 2021 and the identify proof, such as, copies of the Aadhar cards duly signed by both the parties. As against the aforesaid backdrop, the question is, when the petitioner is facing trial for an offence under Section 376(2)(j)(n)IPC, whether, the criminal prosecution against him pending before the learned Sessions court should be quashed in view of his marriage with opposite party No.2?

9. It is well settled law that the jurisdiction under Section 482 Cr.P.C. is not fettered with any restriction. To meet extra-ordinary situations, the inherent power may be invoked to do substantial justice. Even if an offence is non-compoundable, the same shall not stand as a bar for the Court from exercising the jurisdiction if it is really required to secure the ends of justice. If there is a remote possibility of an outcome in favour of the prosecution due to certain developments taking place involving the parties, under such circumstances, it would not be unjustified if the power conferred under Section 482 Cr.P.C. is exercised to quash the criminal proceeding. It depends on the facts and circumstances of each particular case to decide whether inherent jurisdiction should at all be exercised. To blindly express inability to such exercise of power merely for the reason that a serious offence is involved is not a pragmatic approach. At times, special circumstances demand exercise of inherent power the purpose being to do and deliver justice to the parties even where any offence is serious and non-compoundable in nature. If there is a relationship between the parties; or the victim said to have eloped with the accused leading to the registration of a case for an offence of rape and/or under the POCSO Act; or where after a consensual relationship, an allegation of sexual mischief is made by the victim, when her marriage with the accused did not materialize initially but at the end as against the above

background, marriage has taken place with the differences settled, the Court does not find any reason as to why inherent jurisdiction should not be exercised. If in such situations, the prosecution would be allowed to continue, the same would definitely result in immense inconvenience and hardship to the parties, who are settled and and leading a happy marital life. It may be that in case the prosecution continues after the marriage between the accused and victim, there may be a remote possibility of any conviction as the latter is unlikely to depose against the former. But in other cases, where the offences are such and the dispute between the parties even though settled, it would not be appropriate for the Court to exercise inherent power quashing the criminal prosecution. In other words, where under special circumstances, some of which have been illustrated herein before, if the dispute is settled between the parties resulting in their marriage, the Court is of the humble view that it should not shot its eye and deny exercising inherent power.

10. In **Ananda D.V.** (supra), the Apex Court considering the marriage between the parties, quashed the FIR since the dispute was fully resolved. This Court in **Jayanta Kumar Dash @ Litu** (supra), having regard to the fact that the victim, a minor by the time of alleged occurrence, since eloped with the accused and subsequently, married him, exercised the jurisdiction under Section 482 Cr.P.C. and quashed the proceeding pending before the Special court. In **Ramawatar** (supra), the Supreme Court discussed in detail about the manner in which jurisdiction under Section 482 Cr.P.C. should be exercised and finally quashed the criminal proceedings which involved an offence under the SC&ST (PoA) Act so as to do complete justice between the parties and reiterated therein that such power is exercisable at post-conviction stage. Similar is the view expressed by the Supreme Court in

Ramgopal (supra). In so far as the authority in **Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur** (supra) is concerned, a general law has been laid down that in serious offences like rape, murder, dacoity etc. power under Section 482 Cr.P.C. is not to be exercised. It does not mean that under circumstances such as marriage between the parties even after a failed or disturbed relationship, such jurisdiction cannot at all be exercised which is not to be deduced as a ratio of the aforesaid decision. Under the circumstances, some of which have been outlined before though not exhaustive, keeping in view the special situations, according to the Court, extra-ordinary power may be exercised so as to advance real justice. It is no doubt that cases involving offences of grievous nature committed in a given set of facts unlike the illustrated ones, the Court is not to invoke such jurisdiction since it would impact the society. But in befitting cases, where its exercise is really needed to do complete justice, compromise and settlement of dispute resulting in marriage between the parties even involved in a strained relationship may be a justifiable ground to bring an end to the prosecution and terminated.

11. In the instant case, indisputably, the marriage has taken place between the parties. The victim has filed an affidavit to that effect stating that she is presently leading a settled marital life. From Annexure-1, it is made to suggest that in some manner both the parties developed relationship after their brief encounter. Of course, the petitioner alleged to have committed certain mischief when the marriage of opposite party No.2 was proposed elsewhere perhaps as a reaction to it. The petitioner is not an outsider but distantly related to the informant as disclosed in Annexure-1. After marriage of the victim was fixed at another place, the petitioner did the mischief and was allegedly instrumental in breaking the former's engagement. Though the

conduct of the petitioner is condemnable but as it seems, the same was while encountering an adverse situation. Nevertheless, Court does not in any manner approve such conduct of the petitioner. But, at the same time, considering the circumstances and subsequent marriage, the Court is also of the view that the prosecution needs termination to ensure peace and stability in the lives of the parties. Before parting with, the Court has gone through the nature of evidence deposed by opposite party No.2 which is on record. Under the special circumstances and having regard to the settled position of law discussed above, the Court does feel that it is a fit case where inherent jurisdiction should be exercised in the best interest of the parties.

12. Accordingly, it is ordered.

13. In the result, the petition stands allowed. As a necessary corollary, the criminal proceeding in connection with CT(S) No.94 of 2018 pending before the learned Sessions judge, Dhenkanal corresponding to G.R.Case No.222 of 2018 arising out of Gondia PS Case No. 36 dated 4th March, 2018 is hereby quashed vis-à-vis the petitioner for the reasons discussed herein before.

(R.K. Pattanaik)
Judge

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